

January, nineteen hundred and fourteen, shall be deemed to be the net receipts for the corresponding half years during the period of Government control. For the purpose of this clause a half year of account any portion of which is within the period of Government control shall be considered to be entirely within the said period.

It is agreed that His Majesty's Government shall give effect to this provision by Statute or otherwise, and in the event of His Majesty's Government failing to give effect to the provision hereinbefore referred to, the company concerned shall be entitled to include in their claim for compensation for each year of control the sum for which the guaranteeing authorities were liable in respect of the said two successive half-yearly periods ended next before first January, nineteen hundred and fourteen, and a proportionate part thereof for any period of control less than a year.

12. In the case of lines worked by companies at a percentage of receipts or otherwise, the sums paid to the owning companies for the year ended next before first January, nineteen hundred and fourteen, shall be deemed to be the sums payable to the owning companies under their working agreements during each year of Government control, and shall be accepted accordingly.

Compensation
payable to
worked lines

For the purpose of this provision a half year of account, any portion of which is within the period of Government control, shall be considered to be entirely within the said period.

CHAPTER 79.

An Act to amend the Trade Marks Act, 1905.

[23rd December 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

REGISTRATION OF CERTAIN TRADE MARKS NOT REGISTRABLE UNDER PRINCIPAL ACT.

1.—(1) The register of trade marks (including the Manchester Register) kept under the Trade Marks Act, 1905 (hereinafter referred to as the principal Act), shall be divided into two parts to be called respectively Part A. and Part B.

Division of
register of
trade marks
into two parts.
5 Edw. 7. c. 15.

(2) Part A. of the register shall comprise all trade marks entered in the register of trade marks at the commencement of this Act and all trade marks which after the commencement of this Act may be registered under the provisions of the principal Act.

(3) Part B. shall comprise all trade marks registered under this Part of this Act, and all trade marks entered on or removed thereto under this Act.

Registration
of trade marks
in Part B.

2.—(1) Where any mark has for not less than two years been bonâ fide used in the United Kingdom upon or in connection with any goods (whether for sale in the United Kingdom or exportation abroad), for the purpose of indicating that they are the goods of the proprietor of the mark by virtue of manufacture, selection, certification, dealing with or offering for sale, the person claiming to be the proprietor of the mark may apply in writing to the registrar in the prescribed manner to have the mark entered as his registered trade mark in Part B. of the register in respect of such goods.

(2) The registrar shall consider every such application for registration of a trade mark in Part B. of the register, and if it appears to him, after such search, if any, as he may deem necessary, that the application is inconsistent with the provisions of section eleven or section nineteen of the principal Act, or if he is not satisfied that the mark has been so used as aforesaid, or that it is capable of distinguishing the goods of the applicant, he may refuse the application, or may accept it subject to conditions, amendments or modifications as to the goods or classes of goods in respect of which the mark is to be registered, or to such limitations, if any, as to mode or place of user or otherwise as he may think right to impose, and in any other case he shall accept the application.

(3) Every such application shall be accompanied by a statutory declaration verifying the user, including the date of first user, and such date shall be entered on the register.

(4) Any such refusal or conditional acceptance shall be subject to appeal to the court, and, if the ground for refusal is insufficiency of evidence as to user, such refusal shall be without prejudice to any application for registration of the trade mark under the provisions of the principal Act.

(5) Every such application shall, if accepted, be advertised in accordance with the provisions of the principal Act.

(6) A mark may be registered in Part B. notwithstanding any registration in Part A. by the same proprietor of the same mark or any part or parts thereof.

Application of
certain
provisions of
principal Act
to Part B.
trade marks.

3. The provisions of the principal Act, as amended by this Act, with the exception of those set out in the First Schedule to this Act, shall, subject to the provisions of this Part of this Act, apply in respect of trade marks to which this Part of this Act applies as if they were herein re-enacted and in terms made applicable to this Part of this Act.

Effect of
registration
in Part B.

4. The registration of a person as the proprietor of a trade mark in Part B. of the register shall be primâ facie evidence that that person has the exclusive right to the use of that trade mark, but, in any action for infringement of a trade mark entered in Part B. of the register, no injunction, interdict or other relief shall be granted to the owner of the trade mark in respect of such registration, if the defendant establishes to the

satisfaction of the court that the user of which the plaintiff complains is not calculated to deceive or to lead to the belief that the goods the subject of such user were goods manufactured, selected, certified, dealt with or offered for sale by the proprietor of the trade mark.

5. If any person applies for the registration of a trade mark under the principal Act in Part A. of the register, the registrar may, if the applicant is willing, instead of refusing the application, treat it as an application for registration in Part B. of the register under this Part of this Act and deal with the application accordingly.

Power to treat applications for registration in Part A. as applications for registration in Part B.

PART II.

PROVISIONS FOR THE PREVENTION OF ABUSES OF TRADE MARKS.

6.—(1) Where in the case of an article or substance manufactured under any patent in force at or granted after the passing of this Act, a word trade mark registered under the principal Act or Part I. of this Act is the name or only practicable name of the article or substance so manufactured, all rights to the exclusive use of such trade mark, whether under the common law or by registration (and notwithstanding the provisions of section forty-one of the principal Act), shall cease upon the expiration or determination of the patent, and thereafter such word shall not be deemed a distinctive mark, and may be removed by the court from the register on the application of any person aggrieved.

Removal from register of word trade marks used as names of articles.

(2) No word which is the only practicable name or description of any single chemical element or single chemical compound, as distinguished from a mixture, shall be registered as a trade mark, and any such word now or hereafter on the register may, notwithstanding section forty-one of the principal Act, be removed by the court from the register on the application of any person aggrieved :

Provided that—

- (a) the provisions of this subsection shall not apply where the mark is used to denote only the proprietor's brand or make of such substance, as distinguished from the substance as made by others, and in association with a suitable and practicable name open to the public use ; and
- (b) in the case of marks registered before the passing of this Act, no application under this section for the removal of the mark from the register shall be entertained until after the expiration of four years from the passing of this Act.

(3) The power to remove a trade mark from the register conferred by this section shall be in addition to and not in derogation of any other powers of the court in respect of the removal of trade marks from the register.

(4) The provisions contained in Part III. of this Act authorising applications for the rectification of the register to be made in the first instance to the registrar instead of to the court shall apply to applications under this section.

PART III.

GENERAL AMENDMENTS OF PRINCIPAL ACT.

Amendment of
the law as to
registrable
trade marks.

7. In paragraph (5) of section nine of the principal Act (which defines the particulars which registrable trade marks must contain or consist of) for the words "except by order of the Board of Trade or the court be deemed a distinctive mark," there shall be substituted the words "be registrable under the provisions of this paragraph, except upon evidence of its distinctiveness."

Appeals.

8.—(1) All appeals from the decisions of the registrar under section fourteen of the principal Act shall be made to the court, and an appeal shall not lie from any such decision to the Board of Trade, and accordingly that section shall have effect, subject to the modifications set forth in the Second Schedule to this Act:

Provided that nothing in this subsection shall affect any appeal which may be pending at the commencement of this Act.

(2) In any appeal from the decision of the registrar to the court under the principal Act or this Act the court shall have and exercise the same discretionary powers as under the principal Act or this Act are conferred upon the registrar.

Rectification of
register.

9.—(1) Any application for the rectification of the register or the removal of any trade mark from the register in respect of any goods which, under section thirty-five or section thirty-seven of the principal Act or under Part II. of this Act, is to be made to the court, may, at the option of the applicant, be made in the first instance to the registrar:

Provided that no such application shall be made otherwise than to the court where an action concerning the trade mark in question is pending.

(2) The registrar may, at any stage of the proceedings, refer any such application to the court or he may, after hearing the parties, determine the question between them, subject to appeal to the court.

(3) In any proceedings for the rectification of the register under this Act or under section thirty-five of the principal Act as amended by this section the court or the registrar shall, in

addition to the powers conferred by that section as so amended, have power to direct a trade mark entered in Part A. of the register to be removed to Part B. of the register.

10. In all proceedings before the registrar under the principal Act or this Act the registrar shall have power to award to any party such costs as he may consider reasonable, and to direct how and by what parties they are to be paid, and any such order may be made a rule of court. Costs.

11. For section thirty-three of the principal Act, the following section shall be substituted :—

“ 33.—(1) Where a person becomes entitled by assignment, transmission, or other operation of law to a registered trade mark, he shall make application to the registrar to register his title, and the registrar shall, on receipt of such application and on proof of title to his satisfaction, register him as the proprietor of the trade mark, and shall cause an entry to be made in the prescribed manner on the register of the assignment, transmission, or other instrument affecting the title. Any decision of the registrar under this section shall be subject to appeal to the court. Registration of assignments.

“(2) Except in cases of appeals under this section and applications made under section thirty-five of this Act, a document or instrument in respect of which no entry has been made in the register in accordance with the provisions of subsection (1) aforesaid shall not be admitted in evidence in any court in proof of the title to a trade mark unless the court otherwise directs.”

12. The amendments specified in the second column of the Second Schedule to this Act, which relate to minor details, shall be made in the provisions of the principal Act specified in the first column of that schedule. Minor amendments of principal Act.

13.—(1) This Act may be cited as the Trade Marks Act, 1919, and the Trade Marks Acts, 1905 and 1914, and so much of the Patents and Designs Acts, 1907 to 1919, as relates to trade marks, and this Act may be cited together as the Trade Marks Acts, 1905 to 1919. Short title, construction, and commencement.

(2) This Act shall be construed as one with the principal Act and shall come into operation on the first day of April nineteen hundred and twenty.

SCHEDULES.

Section 3.

FIRST SCHEDULE.

PROVISIONS OF PRINCIPAL ACT NOT APPLIED.

No. of Section.	Subject-matter.
1	Short title.
2	Commencement of Act.
6	Incorporation of existing register.
9	Registrable trade marks.
12	Application for registration.
14 (9)	Modification of trade mark on appeals.
15	Disclaimers.
24	Associated trade marks
25	Combined trade marks.
27	Assignment and user of associated trade marks.
31	Status of unrenewed trade marks.
36	Trade marks registered under previous Acts.
39 (except proviso)	Rights of proprietor of trade mark.
41 down to the words "against the provisions of section " eleven of this Act."	Registration to be conclusive after seven years.
42	Unregistered trade mark.
62	Standardization, &c., trade marks.
73	Repeal and saving for rules, &c.

Sections 8
and 12.

SECOND SCHEDULE.

MINOR AMENDMENTS OF PRINCIPAL ACT.

Section Amended.	Nature of Amendment.
Section 12	At the end of subsection (2) there shall be inserted the following words "or to such limitations, if any, as to mode or place of user or otherwise as he may think right to impose." In subsection (4), after the words "modifications, if any," shall be inserted the words "or to what limitations, if any, as to mode or place of user or otherwise."
Section 13	After the word "conditions" in both places where it occurs, there shall be inserted the words "and limitations." At the end of the section there shall be inserted the words "Provided that an application under the provisions of subsection (5) of section nine of this Act may be advertised by the Registrar on receipt of such application and before acceptance."

Section Amended.	Nature of Amendment.
Section 14	In subsection (4), after the word "conditions" there shall be inserted the following words "or what limitations as to mode or place of user or otherwise." In subsection (5) the words "or with the consent of the parties to the Board of Trade" shall be repealed. In subsection (6) the words "the Board of Trade or" and "as the case may be" shall be repealed; and after the words "conditions, if any" there shall be inserted the words "or what limitations, if any, as to mode or place of user or otherwise." Subsection (10) shall be repealed.
Section 16	After the words "the registrar shall" there shall be inserted the words "unless the mark has been accepted in error or."
Section 21	After the word "court" there shall be inserted the words "or registrar" in each case. Delete the words "as it may think it right to impose" and insert "as the court or the registrar, as the case may be, may think it right to impose."
Section 22	At the end of the section there shall be added the following words "and the assignment of such right to use the same shall constitute the assignee a proprietor of a separate trade mark for the purpose of section twenty-one of this Act, subject to such conditions and limitations as may be imposed under that section."
Section 23	After the words "modifications, if any," there shall be inserted the words "and to such limitations, if any, as to mode or place of user."
Section 24	After the words "registration of a trade mark" there shall be inserted the words "identical with or."
Section 34	After the word "terms" there shall be inserted the words "and subject to such limitations as to mode or place of user."
Section 41	In the proviso, after the words "anterior to the user" there shall be inserted the words "or registration, whichever is the earlier."
Section 43	For section forty-three the following section shall be substituted: "In any action or proceeding relating to a trade mark or trade name the tribunal shall admit evidence of the usages of the trade concerned and of any relevant trade mark or trade name or get up legitimately used by other persons."
Section 62	For the words "Where any association or person undertakes the examination of any goods in respect of origin, material, mode of manufacture, quality, accuracy or other characteristic, and certifies the result of such examination by mark used upon or in connection with such goods, the Board of Trade may, if they

Section Amended.	Nature of Amendment.
	“ shall judge it to be to the public advantage, permit “ such association or person to register such mark as a “ trade mark in respect of such goods whether or not “ such association or person be a trading association or “ trader or possessed of a goodwill in connection with “ such examination and certifying,” there shall be substituted the words “ Where any association or person “ undertakes to certify the origin, material, mode of “ manufacture, quality, accuracy or other characteristic “ of any goods by mark used upon or in connection “ with such goods, the Board of Trade, if and so long “ as they are satisfied that such association or person is “ competent to certify as aforesaid, may, if they shall “ judge it to be to the public advantage, permit such “ association or person to register such mark as a trade “ mark in respect of such goods, whether or not such “ association or person be a trading association or trader “ or possessed of a goodwill in connection with such “ certifying.”
Section 64	- Subsection (10 (a)) shall be repealed. In subsection (10 (c)) the word “ word ” shall be omitted.

CHAPTER 80.

An Act to amend the Patents and Designs Acts.

[23rd December 1919.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Provisions for
the prevention
of abuse of
monopoly
rights.

7 Edw. 7. c. 29.

1. For section twenty-seven of the Patents and Designs Act, 1907 (hereinafter referred to as the principal Act), the following section shall be substituted :—

“ 27.—(1) Any person interested may at any time apply to the comptroller alleging in the case of any patent that there has been an abuse of the monopoly rights thereunder and asking for relief under this section.

(2) The monopoly rights under a patent shall be deemed to have been abused in any of the following circumstances :—

(a) If at any time after the expiration of four years from the date of the patent, the patented invention (being one capable of being worked in the United Kingdom), is not being worked within the United Kingdom on a commercial scale, and no satisfactory reason can be given for such non-working :